

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HUAICHUN LEI,

Petitioner

VS.

NAJIAN HUANG,

Respondent

) Case Number: FDI-24-799990

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
DATE OF SEPARATION; DISPUTE TRANSACTIONS; PROCEDURAL POTECTION 730 REP

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1. The parties are Petitioner Huaichun Lei and Respondent Najian Huang. The parties were married on March 13, 2015. They share two minor children.
2. On 7/11/24, Petitioner filed a Petition for Dissolution listing the date of separation as 4/1/19.
3. On 8/16/24, Respondent filed a Response and Request for Dissolution listing the date of separation as 7/19/24. Respondent checked item 8a. on her Response, indicating a request for spousal support orders.
4. On 11/14/24, Respondent filed a Request for Order seeking child custody, visitation, and child support, but not spousal support. The child support request was later transferred to Department 416 (now Department 414).
5. On 5/22/25, the Court made a series of orders regarding businesses owned by Petitioner, Blue Mountain Payments (BMP) and N&H Investment LLC. The Court then stayed those orders on

1 11/26/25 and recommended that Respondent consider retaining a joint 730 expert for business
2 characterization and valuation.

3 6. On 7/1/25, the Court ordered Petitioner to pay Respondent guideline child support in the amount
4 of \$4,405.00 retroactive to 12/01/24 and payable on the first day of the based on Petitioner having
5 a 25% timeshare with the children.

6 7. On 2/24/26, Respondent filed Request for Order in which she seeks spousal support, attorney fees
7 and other miscellaneous relief. In particular, she seeks 1) a determination as to the date of
8 separation; 2) orders regarding disputed transactions, payroll and personal expenses; 3)
9 “procedural protections” regarding a section 730 expert report; and 4) \$10,000 in attorney’s fees
10 and costs. Finally, Respondent contends that Petitioner owes \$25,251.32 in child support arrears
11 but does not explicitly request any orders regarding the alleged arrears.

12 8. On 02/24/26, Respondent filed an Income and Expense Declaration in which she states the
13 following:

14 a. Income: \$10,000.00 per month.

15 b. Tax Filing Status: Married, filing separately.

16 c. 2 minor children (75% timeshare to Mother)

17 d. Health Insurance Premiums: \$100.00/month

18 e. Property Tax: \$1000.00/month (no mortgage payment is listed, nor is there any entry for
19 interest.)

20 f. Total Expenses: \$9600.00

21 g. Attorney Fees Paid: Section was left blank.

22 h. Daycare: \$1000.00/month

23 9. On 3/13/26, Petitioner filed Responsive Declaration opposing Respondent’s requested orders.

24 Petitioner asserts that Respondent has substantial monthly income and that his own ability to pay
25 spousal support is limited, as the current child support order is based on inflated income, and he is
26 paying \$1,100 in arrears in addition to \$4,400 in ongoing support. Petitioner contends there is no
27 income disparity warranting attorney’s fees and costs. He requests the Court reserve jurisdiction
28 over the date of separation, deny Respondent’s remaining requests as vague and unsupported, and
29 award \$5,000 in sanctions under Family Code section 271.

1 10. On 03/13/26, Petitioner filed an Income and Expense Declaration in which he states the
2 following:

3 a. Income:

4 i. Wages: \$5,500.00 per month.

5 ii. IHHS: \$2580.81

6 iii. Rental Income: \$385.52

7 iv. Self-Employed: \$274.30 (However, the Court thoroughly reviewed his P/L for
8 Blue Mountain Payments for 2025 show his profits less expenses totaled
9 \$355,128.12 for the 12 month period.) Therefore, it appears that his true monthly
10 gris \$29,594.01.

11 v. N&H Investment LLC: \$4,626.19 per month.

12 b. Tax Filing Status: Married, filing separately.

13 c. 2 minor children (75% timeshare to Mother)

14 d. Health Insurance Premiums: \$100.00/month

15 e. Property Tax: \$1500.00/month (no mortgage payment is listed, nor is there any entry for
16 interest.)

17 f. Total Expenses: \$8,775.00

18 g. Attorney Fees Paid: \$71,312.50

19 h. Daycare: \$1000.00/month

20 11. On 3/16/26, Respondent filed a declaration with an attachment purportedly demonstrating that
21 Petitioner's claims of limited income are inaccurate and misleading. The declaration attaches
22 numerous financial documents.

23 12. On 3/19/26, Petitioner filed an objection to Respondent's 3/16 declaration on the basis that it
24 introduces new evidence on reply. Petitioner contends that Respondent's analysis of his income is
25 flawed and reiterates his request for section 271 sanctions against Respondent on the basis that
26 she has filed multiple requests for orders as a procedural tactic designed to delay proceedings and
27 increase Petitioner's attorney fees.

28

29

13. On 3/23/26, Respondent filed a declaration attaching further financial information meant to demonstrate Petitioner's purported ability to pay temporary spousal support and need based attorney's fees.

B. Findings and Order

1. Respondent's request for guideline spousal support is GRANTED.

2. In accordance with the XSpouse report attached hereto and incorporated herein, spousal support shall be payable by Petitioner to Respondent in the amount of \$2,840.00 per month on the 1st day of each month, commencing March 1, 2026. The parties shall meet and confer regarding payment of arrears owed to Respondent based on this order.

3. Respondent's request for attorney's fees is DENIED. There is no showing of disparity in access to funds and given the amount of support ordered, the Court finds Petitioner does not have the ability to pay any of Respondent's attorney fees.

4. As to the additional relief requested by Respondent, the Court finds good cause to order as follows:

a. Determination as to the date of separation is RESERVED for trial; this is an issue that is better suited for adjudication at the time of trial.

b. Orders regarding disputed transactions, payroll, and personal expenses is RESERVED for trial; this is also an issue that is better suited for adjudication at the time of trial.

c. Order re: "procedural protections" regarding a section 730 expert report is DENIED as the Court unclear what the moving party is requesting.

d. Order that Petitioner owes \$25,251.32 in child support arrears is DENIED without prejudice as the moving party has sought enforcement through the San Francisco Department of Child Support Services. Respondent shall ask the Department of Child Support Services to file a motion seeking a determination of arrears on her behalf.

5. Counsel for Petitioner shall prepare the Findings and Order After Hearing.

6. **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	2	2026			
% time with NCP	25.00%	0.00%				
Filing status	MFS->	<-MFS	GUIDELINE	Comb. net spendable	30915	30915
# exemptions	1 *	3	Nets(adjusted)	Percent change	0%	0%
Wages+salary	0	12963	Father 21800	Father		
Self-employed income	29594	0	Mother 9115	Payment cost/benefit	-2840	-2840
Other taxable income	7592	0	Total 30915	Net spendable income	18960	18960
TANF+CS received	0	0	Support	Change from guideline	0	0
Other nontaxable income	0	0	Addons 0	% of combined spendable	61%	61%
New spouse income	0	0	Guideln CS 0	% of saving over guideline	0%	0%
401(k) employee contrib	0	0	S.Clara SS 2840	Total taxes	1538€	1538€
Adjustments to income	0	0	Total 2840	Dep. exemption value	0	0
SS paid prev marriage	0	0		# withholding allowances	0w	0w
CS paid prev marriage	0	0	Settings changed	Net wage paycheck	0	0
Health insurance	0	100		Mother		
Other medical expense	0	0		Payment cost/benefit	2840	2840
Property tax expense	0	0		Net spendable income	11956	11956
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	39%	39%
Misc tax deductions	0	0	CS 0	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS 2840	Total taxes	3748	3748
Required union dues	0	0	Total 2840	Dep. exemption value	0	0
Mandatory retirement	0	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving 0	Net wage paycheck	8508	8508
Other GDL deductions	0	0	Releases 0			
Child care expenses	0	0				

Father pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	25 - 75	0	0	0 Father	0 Father	0 Father
	25 - 75	0	0	0 Father	0 Father	0 Father
	25 - 75	0	0	0 Father	0 Father	0 Father